



U.S. Bankruptcy Court, District of Minnesota

Rule 5011-1. Withdrawal of Reference

- (a) **GENERALLY.** A motion for withdrawal of reference under 28 U.S.C. § 157(d) and Federal Rule of Bankruptcy Procedure 5011(a) must be filed with the clerk of the bankruptcy court. Any other party in interest may serve and file a response within 14 days after service of the motion. The clerk of the bankruptcy court will transmit the motion and any response to the clerk of the district court. If the district court orders a withdrawal of the reference, the clerk of the bankruptcy court will transmit all relevant documents to the clerk of the district court.
- (b) **JURY TRIAL.** Where the right to a jury trial has been asserted, and the proceeding is not yet trial ready, any motion for withdrawal of reference under subsection (a) of this rule must also state specific grounds for why the reference should be withdrawn before the proceeding is trial ready.

[Effective April 15, 1997. Amended effective January 1, 2002; January 9, 2006; October 1, 2019; September 3, 2025.]

2025 Advisory Committee Notes

Local Rule 5011-1 was amended to add subsections. New subsection (a) addresses withdrawal of reference generally. Citations to 28 U.S.C. § 157(d) and Fed. R. Bankr. P. 5011(a) were added. The provision regarding abstention, remand, and transfer was removed to ensure consistency with 28 U.S.C. § 157(d). Abstention is addressed in 28 U.S.C. § 1334(c). The provision about first filing a motion for stay with the bankruptcy court was removed as duplicative of Fed. R. Bankr. P. 5011(c), which states that a motion filed under Fed. R. Bankr. P. 5011(a) or (b) “does not stay proceedings in a case or affect its administration. But a bankruptcy judge may, on proper terms and conditions, stay a proceeding until the motion is decided.” The remaining changes are stylistic or were made to add clarity, such as whether it is the bankruptcy court clerk or the district court clerk who will transmit certain documents.

Subsection (b) was added to address situations where the right to a jury trial has been asserted, but where the proceeding is not yet trial ready. It requires the moving party to assert the specific grounds for withdrawing the reference before the proceeding is trial ready. *See, e.g., Kelley v. JPMorgan Chase & Co.*, 464 B.R. 854, 863–67 (D. Minn. 2011) (explaining how the motion for withdrawal of reference was premature).

Please see the 2025 Advisory Committee Notes to Local Rule 9029-2 regarding the former reference to the rule being promulgated by the district court.